

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Sheila Donovan	Team: Team # 7	CCRB Case #: 200600337	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 01/06/2006 8:00 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 7/6/2007	Precinct: 77		
Date/Time CV Reported Mon, 01/09/2006 10:03 AM	CV Reported At: CCRB	How CV Reported: In-person	Date/Time Received at CCRB Mon, 01/09/2006 10:03 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Joseph Collora	31165	903648	077 PCT
2. An officer			
3. POM John Hanley	13199	897627	077 PCT
4. POM Edgar Bourdon	30988	903075	077 PCT
5. POM Matthew Granahan	26635	926899	077 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Matthew Granahan	Abuse: PO Matthew Granahan stopped and questioned § 87(2)(b)	A . Substantiated
B . POM Matthew Granahan	Discourtesy: PO Matthew Granahan spoke obscenely and rudely to § 87(2)(b)	B . Unsubstantiated
C . POM Matthew Granahan	Abuse: PO Matthew Granahan threatened to damage § 87(2)(b)'s property.	C . Unsubstantiated
D . An officer	Discourtesy: An officer spoke obscenely and rudely to § 87(2)(b)	D . Officer(s) Unidentified
E . POM Matthew Granahan	Force: PO Matthew Granahan pointed his gun at § 87(2)(b)	E . Unsubstantiated
F . POM Matthew Granahan	Abuse: PO Matthew Granahan frisked § 87(2)(b)	F . Unsubstantiated
G . POM Edgar Bourdon	Abuse: PO Edgar Bourdon frisked § 87(2)(b)	G . Unsubstantiated
H . POM John Hanley	Abuse: PO John Hanley frisked § 87(2)(b)	H . Miscellaneous - Subject Retired
I . POM John Hanley	Discourtesy: PO John Hanley spoke obscenely and rudely to § 87(2)(b)	I . Miscellaneous - Subject Retired
J . POM Joseph Collora	Abuse: PO Joseph Collora Issued summonses to § 87(2)(b)	J . Substantiated
K . POM Matthew Granahan	Abuse: PO Matthew Granahan refused to provide his name and shield number to § 87(2)(b)	K . Substantiated

Synopsis

§ 87(2)(b) came to the CCRB on January 9, 2006 in order to file his complaint. On January 6, 2006 at approximately 8:00PM inside of § 87(2)(b) in Brooklyn, PO Matthew Granahan, accompanied by PO Edgar Bourdon, PO John Hanley and PO Joseph Collora, stopped § 87(2)(b) (Allegation A). § 87(2)(b) claimed that PO Granahan stated, “Where the fuck are you going? Don’t go into that apartment” (Allegation B). § 87(2)(b) went into his mother’s apartment, § 87(2)(b), in order to put his dog away. PO Granahan stated that he would kick the door in and threatened to shoot the dog (Allegation C). An officer, whom § 87(2)(b) could not see because the door was closed, then kicked the door and said, “Open the fucking door” (Allegation D). After the dog was secured inside his mother’s bathroom, § 87(2)(b) came out of the apartment. PO Granahan had his gun drawn and pointed at § 87(2)(b) (Allegation E). § 87(2)(b) claimed that PO Granahan, PO Bourdon and PO Hanley frisked him (Allegations F, G, and H). § 87(2)(b) stated that he was then brought outside of the building where PO John Hanley spoke discourteously to him (Allegation I). PO Collora issued § 87(2)(b) summonses for urinating in public, spitting and disorderly conduct (Allegation J). After receiving these summonses § 87(2)(b) asked PO Granahan for his name and shield number to which PO Granahan allegedly replied, “It’s on the summons wiseass” and did not provide the information (Allegation K).

§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g) The officers claimed that when they first encountered § 87(2)(b) he was urinating outside of his apartment building. § 87(2)(g) For this reason it was recommended that Allegation A be substantiated. § 87(2)(g) it was recommended that Allegation B be unsubstantiated. § 87(2)(g) it was recommended that Allegation C be unsubstantiated. § 87(2)(b) did not see the officer who allegedly stated, “Open the fucking door” because the door was shut at the time. Therefore it is recommended that Allegation D be closed as officer unidentified. § 87(2)(g) § 87(2)(g) For this reason it was recommended that Allegation E be unsubstantiated. § 87(2)(g) For this reason it was recommended that Allegations F and G be unsubstantiated. Because PO John Hanley retired on July 7, 2006, it was recommended that Allegations H and I be closed as miscellaneous, subject retired. The summonses that PO Collora issued to § 87(2)(b) were not supported by probable cause and were issued in bad faith. For this reason it was recommended that Allegation J be substantiated. § 87(2)(g) For these reasons it was recommended that Allegation K be substantiated.

Summary of Complaint

§ 87(2)(b) provided a written statement that was dated January 6, 2006 (encl. 2A-2D). § 87(2)(g) Though § 87(2)(b) had his written statement in front of him, he very rarely referenced it. When he did it was during parts when he was quoting the officers.

§ 87(2)(b) was interviewed at the CCRB on January 9, 2006 (encl. 4A-4C). On January 6, 2006 at approximately 8:00PM § 87(2)(b) was meeting his mother, § 87(2)(b) on the stairs to get his dog from her. § 87(2)(b) lives on the § 87(2)(b) of § 87(2)(b) in Brooklyn. § 87(2)(b) lives on the § 87(2)(b) of the same building. Since § 87(2)(b) works at night he often brings his dog, a thirteen-year-old German Shepherd named § 87(2)(b), to his mother’s during the day while he sleeps. Before he leaves for work he usually meets the dog on the stairs between the § 87(2)(b) and § 87(2)(b) to

take the dog for a walk. On this date § 87(2)(b) called his mother to let her know he was going out to the stairs. When he had gotten to the § 87(2)(b) landing, § 87(2)(b) heard people entering the hallway and looked over the banister to see who it was and how far up they were coming. § 87(2)(b) saw white hands on the railing coming up to the § 87(2)(b). Because there are not usually white people in the building, he assumed that they were police officers. He shouted out for his mother to stop the dog from coming down. The dog was at the top of the stairs and started to come down. The people on the stairs continued to come up. § 87(2)(b) continued up to the § 87(2)(b) and was ordering the dog back into the apartment. The first officer on the stairs, whom he described during his interview and later picked out of a photo, was PO Matthew Granahan. PO Granahan reached the landing between the third and § 87(2)(b) and the dog became excited and was lunging. § 87(2)(b) could tell PO Granahan was an officer because his clothes were bulky as if he were wearing a bulletproof vest. § 87(2)(b) heard one of the other officers from down the stairs say a couple of times, "He dropped his drugs." § 87(2)(b) was at the § 87(2)(b) giving the dog orders to "Get inside, get inside." PO Granahan yelled, "Where the fuck are you going?" and ran up the stairs saying, "Get the fuck over here!" § 87(2)(b) continued into the apartment trying to push his dog in because the dog is protective. He heard other footsteps coming up the stairs.

PO Granahan told § 87(2)(b) "Don't go into the apartment." § 87(2)(b) went into his mother's apartment, leaving the door just cracked so that the dog could not get out but he could still communicate with the officer, about 10 inches wide. PO Granahan said, "Don't put the fucking drugs inside" and told § 87(2)(b) that he would kick the "fucking" door in. § 87(2)(b) told PO Granahan that there was a dog in the apartment. PO Granahan said that he would shoot the "fucking dog." § 87(2)(b)'s mother became upset saying, "Don't shoot the dog" from behind the door. § 87(2)(b) did not want the officer to come in so he shut and locked the door. PO Granahan either kicked the door or pushed the door. § 87(2)(b) heard another voice behind the door also ordering him to "open the fucking door."

Once the dog had been put away in the bathroom, § 87(2)(b) said through the door that he was coming out and that the dog was put away. § 87(2)(b) came out and showed his hands. PO Granahan had his gun out and pointed at § 87(2)(b)'s chest from about 5 feet away. There were two other officers with him on the stairs, PO Edgar Bourdon and PO John Hanley, who were also identified from his description and a photo presentation. When § 87(2)(b) stepped out, PO Granahan holstered his gun and grabbed § 87(2)(b)'s right arm and shoved him against the wall. PO Bourdon helped him. PO Granahan asked, "Why did you put the drugs in the apartment." § 87(2)(b) replied, "Why were you trying to kick in my door?" PO Bourdon said, "You dropped your drugs downstairs." § 87(2)(b) replied, "You're fucking crazy. I am on my way to work." He told them that he had identification in his pocket. PO Granahan said, "I told you to get the fuck over here." § 87(2)(b) said that he was going to work. PO Granahan asked him if he lived there and § 87(2)(b) said that he lived downstairs. PO Granahan said, "So you live downstairs and your dog lives upstairs?" PO Granahan was holding § 87(2)(b)'s right hand and feeling § 87(2)(b)'s pockets. § 87(2)(b) was wearing black jeans and a burgundy long sleeve button down shirt. PO Bourdon was holding § 87(2)(b)'s left hand and also patting his pockets. § 87(2)(b) was loud saying, "Why would you try to kick in the door? Who the fuck are you?" § 87(2)(b) stated that there was a lot of profanity going back and forth between him and the officers. PO Hanley came up and also felt § 87(2)(b)'s pockets.

A fourth officer, identified as PO Joseph Collora from the summonses he later issued, yelled upstairs to the other officers for them to bring § 87(2)(b) downstairs. Neighbors from two other apartments on the floor came out and watched from about fifteen to twenty feet away. They did not yell or intervene at all. § 87(2)(b) did not address them or try to call them over. § 87(2)(b) was trying to get § 87(2)(b) to shut up. When they started to bring § 87(2)(b) down the stairs he tried to write down and give his mother the name and phone number of his manager so that she could call him. The officers didn't hold § 87(2)(b) as they went down the stairs. PO Collora told the other officers, "Don't let him give them anything."

When they got outside, PO Collora went to the car and the other three officers were at the bottom of the stairs. § 87(2)(b) stayed at the top of the stoop. This was the first time that he was outside. PO Hanley told § 87(2)(b) that he needed to "Stay off that shit." § 87(2)(b) told the officer that he works a

minimum of 40 hours a week just like him. § 87(2)(b) said, "This is bullshit." PO Granahan told § 87(2)(b) to calm down and be quiet. PO Hanley told § 87(2)(b) that he needs to "stop smoking that glass pipe." § 87(2)(b) told PO Hanley "You need to suck my dick." They were speaking like this back and forth. PO Granahan said, "You were calm upstairs. What is the matter?" § 87(2)(b) told him, "When you tell him (PO Hanley) to shut the fuck up, I'll shut the fuck up." PO Hanley said, "You're already getting two summonses. Do you want a third?" § 87(2)(b) said, "Fuck you and those summonses." This went on for a few minutes and then the three left and went to the car. § 87(2)(b) was left there and his brother, § 87(2)(b) came out and talked to the officers. One of the neighbors from his floor came down, § 87(2)(b). He lives in § 87(2)(b). An officer called § 87(2)(b) over to the car. § 87(2)(b) said, "Look at this shit now I have to walk over to them." PO Granahan handed § 87(2)(b) his wallet with his identification and the summonses tucked inside. PO Granahan said, "Make sure you come to court." PO Collora might have been the one who checked his identification for warrants. § 87(2)(b) asked PO Granahan for his name and badge number. PO Granahan said, "It's on the ticket wise-ass" or "asshole." When they drove off, § 87(2)(b) looked at the license plate number. They were driving a black Crown Victoria with license plate § 87(2)(e), § 87(2)(f) § 87(2)(b).

Results of Investigation

§ 87(2)(b), § 87(2)(b)'s neighbor who lives in § 87(2)(b), was interviewed at § 87(2)(b) in Brooklyn on June 15, 2006 (encl. 7A-7C). On January 6, 2006 at approximately 8:00PM § 87(2)(b) heard a lot of commotion in the hallway § 87(2)(b) was yelling and screaming) and went downstairs to see what was happening. When he went outside there were four officers, two were inside a car and two were outside.

§ 87(2)(b) was arguing with the officers and they told him to shut up. § 87(2)(b) told them that they should tell their friend to shut up and he would shut up. He said, "Give me respect and I'll give you respect." There was a tall officer with a moustache whom § 87(2)(b) has seen before. § 87(2)(b) first came upon the incident outside of his apartment and did not see the beginning of the encounter. He could not remember anything specific about the dialogue. § 87(2)(b) was asked if he knew what § 87(2)(b)'s schedule is during the day. He said that § 87(2)(b) walks the dog when he gets home from work in the morning and normally sends the dog upstairs to his mother. Sometimes his brother walks the dog. § 87(2)(b) could not remember if he heard the officers use profanity.

§ 87(2)(b)'s mother, was interviewed at § 87(2)(b) in Brooklyn on June 15, 2006 (encl. 5A-5C). § 87(2)(b) stated that on January 6, 2006 at 8:00PM, § 87(2)(b) had called her and let her know to let the dog down because he was getting ready to go to work. § 87(2)(b) stated that as she was letting the dog out, she saw § 87(2)(b) coming up the stairs with two officers in plainclothes behind him. She stated the one in front was taller than the other, whom she recognized from seeing in front of the apartment previously. § 87(2)(b) motioned to bring the dog back into the apartment as he came up the stairs. There were two officers at the time and later there was a third. § 87(2)(b) said, "Let him put the dog up." One of the officers said, "I'll shoot the dog." § 87(2)(b) said, "Please don't shoot the dog." Finally § 87(2)(b) and § 87(2)(b) got the dog into the apartment and closed the door. § 87(2)(b) her other son, who was in the apartment at the time, put the dog into the bathroom. Someone on the outside banged on the door so that the lock is now broken. The door jiggles when you pull on it without the secondary lock on. The police asked § 87(2)(b) "Why is the dog up here if you live downstairs?" § 87(2)(b) was very angry because he was going to be late for work. § 87(2)(b) stated that she did not see any of the officers draw their guns. After the dog was put away, § 87(2)(b) and § 87(2)(b) opened the door again. The police had § 87(2)(b) against the wall and he was facing the wall. His hands were against the wall. § 87(2)(b) could not remember the officers making any physical contact with § 87(2)(b). After that, § 87(2)(b) came into the apartment to make a phone call to a friend of hers. She was confused and upset. The officers took § 87(2)(b) downstairs and she did not follow them.

§ 87(2)(b), § 87(2)(b)'s brother, was interviewed at § 87(2)(b) in Brooklyn on June 15, 2006 (encl. 6A-6D). On January 6, 2006 at approximately 8:00PM § 87(2)(b) heard his brother having

a verbal confrontation. He heard him come inside the apartment making comments to someone about the dog and then a loud bang at the door. § 87(2)(b) grabbed the dog and put her in the bathroom because his mother told him to. § 87(2)(b) was saying, "Don't shoot my dog. Don't shoot my dog. Don't do him like that." § 87(2)(b) went to the peephole and saw that § 87(2)(b) was surrounded by two people and was saying, "What are you talking about?" One was on the left and the other was on the right. There was a Hispanic male with a moustache and a white male with an army fatigue jacket. A third officer who was at the bottom of the stairs was a white male and he was big. The officers had § 87(2)(b) against the wall; he had his hands on the wall. They were trying to pat him down and frisk him. Each officer was holding one of § 87(2)(b)'s wrists. They touched his shoulders and chest and patted down the side of his body. § 87(2)(b) was telling them not to hurt him. They kept saying that § 87(2)(b) had done something wrong and § 87(2)(b) was explaining that he was bringing his dog downstairs and the reason he came up was to put the dog back up because he is a guard dog. The officer on the § 87(2)(b) kept asking about drugs. He was saying, "He put the drugs in the apartment. He put the drugs in the apartment." § 87(2)(b) was saying, "You're crazy." § 87(2)(b) was in the door. The door was open.

§ 87(2)(b) and the officers were speaking for a while. § 87(2)(b) said that he wanted to give § 87(2)(b) and § 87(2)(b) his work manager's name and phone number but the officer who was downstairs would not let him. The officers told § 87(2)(b) to get his identification so § 87(2)(b) went to get it. They started going downstairs and § 87(2)(b) could hear them arguing on the way downstairs. When he went downstairs they were already outside and § 87(2)(b) was outside on the stairs alone. § 87(2)(b) went to the car and talked to the officers. When the officer was finished writing the summonses he called § 87(2)(b) over to the car. § 87(2)(b) asked him what the summonses were for and the officer told him that he would have to read them. § 87(2)(b) asked for their badge numbers and one of the officers told him that his name was on the summons and called him a smart aleck. § 87(2)(b) did not spit. § 87(2)(b) could not remember the officers swearing.

On the date of this incident there was a woman in the entryway of the building who told § 87(2)(b) that the officers had knocked on the door and she opened it. § 87(2)(b) had come into the building about thirty minutes before and she had been standing there then. § 87(2)(b) stated that there are problems with drugs in the building.

§ 87(2)(b), § 87(2)(b)'s neighbor who lives in § 87(2)(b), was interviewed at § 87(2)(b) on June 15, 2006 (encl.8A-8C). On January 6, 2006 she and her daughter heard a commotion in the hallway. § 87(2)(b) usually comes up to bring his dog to his mother's house. § 87(2)(b) could not tell if he was coming or going. He was wearing his uniform and he works at night. Someone must have called the police for the lobby hallway because they always have people coming into the lobby hallway. The officer came up to him and said, "I told you to stop." He said, "For what officer? I am taking my dog to my mom's house. I'm late for work." § 87(2)(b) was in her doorway because she and her daughter were leaving the apartment. The door was open. § 87(2)(b) had already put the dog inside so § 87(2)(b) and her daughter were free to go out the door. The officers were not listening to § 87(2)(b) and threw him against the wall and put him in handcuffs. § 87(2)(b) was talking back and the mother and brother were arguing with the officers but the officers were not listening. They kept telling § 87(2)(b) to "shut up." The officers were two Hispanic males. One had a vest with a tee shirt and the other had an NYPD jacket on. At the time there was a problem with people being in the lobby of the building using drugs. The front door of the building did not lock. The officers took § 87(2)(b) downstairs, put him in the police car and drove off.

Officer Identification

§ 87(2)(b) did not know any of the officers' names at the time of his interview. PO Collora was identified from the summonses issued to § 87(2)(b) (encl.9A-9C). PO Collora was the first officer interviewed for the investigation, during which he stated that on the date of the incident he was working with PO Hanley, PO Bourdon and PO Granahan. They are not listed on the roll call for tour 3 on January 6, 2006 because they were working overtime at the time of this incident. Once the identity of the officers was confirmed from the summons and from PO Collora's interview, photos were ordered. § 87(2)(b) was able to distinguish the officers who were responsible for the allegations he had made when the four photos were presented to him on February 15, 2006 (encl. 4D-4K). On PO Bourdon's photo he wrote, "Second

person to frisk me in front of my mother's apartment." On PO Granahan's photo he wrote, "First person to approach me inquiring 'Where the fuck are you going' and later attempted to kick in my mother's apartment door." He wrote on PO Collora's photo, "This person was the individual standing on the § 87(2)(b) instructing the two others to just bring me down the stairs and [not] allow me to give my mother and brother my manager's information." On PO Hanley's he wrote, "This person was very offensive to me once we reached outside of my building, with comments like, 'You need to stay off of that shit. You need to stop sucking on that glass pipe.' He also threatened to give me three summonses. He wore glasses that night with a baseball cap."

During his interview at the CCRB on January 9, 2006, § 87(2)(b) described the officers responsible for each allegation but did not know the officers' names. § 87(2)(g)

§ 87(2)(b) He stated that this officer was a white male in plainclothes who was clean-shaven with a medium build and dirty blonde hair, in his late twenties or early thirties. In reality, PO Granahan is a white male who was § 87(2)(b) old at the time of the incident and is § 87(2)(b). § 87(2)(g)

§ 87(2)(b) PO Bourdon is a Hispanic male with a moustache who was § 87(2)(b) old at the time of the incident, is § 87(2)(b). According to § 87(2)(b) PO Hanley was a white male with glasses who was clean-shaven, wearing a baseball cap and was in his mid-thirties. Though PO Hanley does not wear glasses, neither do the other officers who were present during the time of this incident. PO Hanley was § 87(2)(b) old at the time of the incident. § 87(2)(g)

§ 87(2)(b) PO Collora has a moustache, was § 87(2)(b) old at the time of the incident and is § 87(2)(b). According to PO Bourdon and PO Granahan's memo books they were riding in vehicle § 87(2)(e), § 87(2)(e), § 87(2)(e), the plate number provided by § 87(2)(b)

PO Joseph Collora was interviewed at the CCRB on February 14, 2006 (encl. 9D-9G). On January 6, 2006 PO Collora worked from 2:00PM to 11:35PM and was assigned to spike overtime. PO Collora worked in plainclothes in an unmarked Crown Victoria vehicle and was looking for crimes in progress and violations. He worked with PO Hanley, PO Bourdon and PO Granahan, his regular partners. PO Collora sat in the rear passenger seat. He did not have any memo book entries because he forgot to make them.

At approximately 8:00PM on January 6, 2006 PO Collora saw a man, identified as § 87(2)(b) urinating in front of § 87(2)(b). PO Collora said, "He's urinating." They pulled up next to some parked cars and got out of the car. They identified themselves as officers by taking out their badges and saying "Police." PO Collora told § 87(2)(b) to stop. PO Collora could not recall what § 87(2)(b) looked like. § 87(2)(b) ran into § 87(2)(b) to the § 87(2)(b) PO Collora never lost sight of him as he ran up to the § 87(2)(b) PO Collora was behind the other officers but PO Collora could not tell who was at the front. § 87(2)(b) opened the door to the apartment and threw something inside and slammed the door shut. The other officers told him that it was a little bag. PO Collora stated that this could mean it was drugs. Both the door to the building and the door to the apartment were unlocked. § 87(2)(b) said, "I don't have to come outside. I didn't do anything. Screw you. Fuck you. I don't have to take this." PO Collora told him that he had to go downstairs or he was going to jail. PO Collora stated that no guns were drawn that he saw, that none of the officers tried to open the door to the apartment, and that § 87(2)(b) never went into the apartment. No force was used to restrain § 87(2)(b) and he was not frisked or braced against the wall. The officers brought him downstairs. § 87(2)(b) was cursing at them and screaming at them. § 87(2)(b) said, "I don't know why you are doing this. I didn't do anything wrong." They told him that he had to come downstairs, that he was going to get a summons for urinating outside. § 87(2)(b) was spitting and cursing as they took him out to the street. PO Collora issued the summonses inside the car and people were watching outside of windows and coming outside to see what was going on. A male family member came outside and told PO Collora that § 87(2)(b) had just started a new job and had had a bad day. PO Collora told the family member to get § 87(2)(b) to calm down because he could not leave him on the street in the state he was in because he was irate and possibly a danger to someone else. PO Collora did not use any profanities and did not hear any of the other officers use profanity when speaking to § 87(2)(b) PO Collora could not recall what other officers were saying

to § 87(2)(b) PO Collora never saw a dog on the scene and did not hear anyone talk about a dog during the incident. PO Collora got § 87(2)(b)'s license outside and ran it in the car. He could not remember if any other officers were in the car with him. § 87(2)(b)'s license confirmed that he lived in the building. PO Collora is not sure if the building had a Trespass Affidavit but stated that they followed him into the building because he had urinated outside. PO Collora stated that he did not recall being asked for his name and shield number or any of the other officers being asked. He did not threaten to shoot § 87(2)(b)'s dog and did not hear any of the officers say that they would shoot his dog or hear them make any threats of force. None of the people who watched the incident outside ever approached the officers.

PO John Hanley was interviewed at the CCRB on March 7, 2006 (encl. 10A-10D). On January 6, 2006 PO Hanley worked from 2:00PM to 10:35PM, his second shift of the day. He did not make any memo book entries regarding this incident. § 87(2)(g)

On January 6, 2006 § 87(2)(b) was urinating in front of § 87(2)(b) PO Hanley, PO Bourdon, PO Granahan and PO Collora exited the vehicle. When § 87(2)(b) saw that they were police officers, he "bolted" into § 87(2)(b) and went up the stairs. PO Hanley did not give him any verbal instructions and could not remember if any of the other officers did. PO Hanley stated that he had his shield out. According to PO Hanley the door to the apartment building was open. PO Hanley followed behind two other officers. He was not sure how § 87(2)(b) got through the front door. He stopped on a landing because PO Bourdon and PO Granahan were already upstairs on the § 87(2)(b) and the space is small. PO Hanley did not lose sight of § 87(2)(b). § 87(2)(b) went into an apartment and then came out after the officer knocked on the door. PO Hanley was not sure how he got into the apartment. From the landing, PO Hanley could see that § 87(2)(b) was being loud and boisterous. No other civilians came out of their apartments. § 87(2)(b) was asking what they were stopping him for. The officers asked him to come downstairs and he complied.

When they brought § 87(2)(b) outside, he was spitting on the street. PO Hanley did not see a dog or an older female inside of the apartment building. PO Hanley did not draw his gun at any point and did not see any of the other officers draw their guns. PO Hanley stated that he did not have any verbal interactions with § 87(2)(b). PO Hanley could not remember if § 87(2)(b) was frisked. When asked if he ever told § 87(2)(b) that he needed to "stay off that shit" and "stop smoking that glass pipe," PO Hanley denied the allegations. PO Hanley denied that he or his fellow officers used profanity. PO Hanley does not wear glasses and none of the other officers wear glasses. PO Hanley could not recall if any of the officers made physical contact with § 87(2)(b). PO Hanley stated that he did not pat § 87(2)(b)'s pockets. When asked to be more specific about how § 87(2)(b) was being boisterous he stated that he put his arms up in the air, moving them back and forth and said, "What are you stopping me for?" PO Hanley could not remember if § 87(2)(b) was using profanity. PO Hanley was asked why § 87(2)(b) was brought downstairs and he said that they needed to do a check for warrants and they left the summonses in the patrol car. PO Hanley could not remember if § 87(2)(b) asked for any of the other officers' names or badge numbers but he did not ask for PO Hanley's. PO Hanley was asked if he had ever been to § 87(2)(b) before and he stated that he had been there because people had been hanging out in the lobby and smoking marijuana. PO Hanley stated that he did not hear any of the other officers threaten to shoot a dog. He also said that he did not threaten to issue a summons.

PO Edgar Bourdon was interviewed at the CCRB on March 14, 2006 (encl. 11A-11E). On January 6, 2006 PO Bourdon worked from 2:00PM to 10:30PM and was assigned to anti-crime. PO Bourdon did not make any entries into his memo book regarding this incident. PO Bourdon had been working with the same officers off and on for two to three years. These officers were PO Hanley, PO Granahan and PO Collora.

At approximately 8:00PM on January 6, 2006 PO Bourdon and his partners were patrolling and spotted a male § 87(2)(b) urinating in front of § 87(2)(b). They observed him for twenty to thirty seconds. PO Bourdon stepped out of the vehicle and § 87(2)(b) ran into § 87(2)(b). PO Bourdon followed him with the other officers. PO Bourdon did not give him any commands and did not remember

any of the other officers giving him any commands. PO Bourdon and PO Granahan ran after him and followed him to the § 87(2)(b) § 87(2)(b) where § 87(2)(b) ran into an apartment, came right back out, and slammed the door. He did not close the door when he went into the apartment. PO Bourdon did not lose sight of him at any time as they chased him to that apartment. PO Bourdon could hear voices from behind the door but could not provide any other details about the voices. At that point § 87(2)(b) was irate, yelling and cursing “Why the fuck did you stop me?” so PO Bourdon told him to come outside. PO Bourdon could not recall any other verbal instructions given to § 87(2)(b) up to this point. § 87(2)(b) went outside with the officers after he was instructed to a couple of times and was issued summonses. When they went outside, PO Bourdon went into the patrol car with the rest of the officers. PO Bourdon claimed that he and PO Granahan did not unholster their guns at any time. PO Bourdon stated that they did not knock or bang on the door when § 87(2)(b) went into the apartment. That area of § 87(2)(b) is known for drugs. PO Bourdon had been in that building before, “plenty of times.” PO Collora frisked § 87(2)(b) in front of the building. He was frisked for their safety because he had run. PO Bourdon did not use profanity when speaking to § 87(2)(b) and did not hear PO Hanley discuss anything with § 87(2)(b). § 87(2)(b)’s brother approached the police car and spoke to PO Collora. A few people came out of the building. PO Bourdon stated that § 87(2)(b) did not ask him or the other officers for their names or badge numbers. PO Bourdon stated that the only physical contact that was made with § 87(2)(b) was during the frisk. When asked if he observed § 87(2)(b) spitting, PO Bourdon stated that § 87(2)(b) spat onto the sidewalk outside of the building. PO Bourdon was asked how he knew that § 87(2)(b) was urinating. He stated that § 87(2)(b) was holding his penis and there was urine on the wall.

PO Matthew Granahan was interviewed at the CCRB on March 9, 2006 (encl. 12A-12E). On January 6, 2006 PO Granahan worked overtime from 2:00PM to 10:35PM and was assigned to Anti-crime with PO Collora, PO Bourdon and PO Hanley. PO Granahan did not make any entries into his memo book. At the time of the incident he had been working with those partners for 8 months.

At 8:00PM on January 6, 2006 PO Granahan observed a male, identified as § 87(2)(b) urinating in front of § 87(2)(b). He was the rear passenger of the car. He got out of the car with the other officers, approached § 87(2)(b) and said, “Stop, come here.” PO Granahan had his shield out. When asked if he verbally identified himself, PO Granahan stated that he thought he said “police.” § 87(2)(b) looked at them and then took off running. They followed him into the building. The door was open. He went up to the § 87(2)(b) and into his apartment, which was also open, and then came out. The door never closed. § 87(2)(b) tried to shut the door but PO Granahan put his hand out and the door hit his hand. PO Granahan gave him verbal instructions to come out and § 87(2)(b) complied. At that time there were no other civilians around and no female on the scene. PO Granahan claimed that there was no dog and no discussion of a dog. PO Granahan could not remember if § 87(2)(b) used a key. PO Granahan did not lose sight of § 87(2)(b) at any time. There were no other civilians in the corridors of the building. PO Bourdon was on the § 87(2)(b) with PO Granahan and PO Hanley and PO Collora were on the stairs.

§ 87(2)(b) was upset when he came out of the apartment and said, “Why are you stopping me? What’s going on.” He was very non-compliant and would not give his identification right away. When asked how he was non-compliant PO Granahan said, “He just wanted to know what we were doing, why we were stopping him. Like I said he didn’t give his identification right away... asked us what we were doing, what was going on. You know...things like that...he was very aggravated.” When asked for his identification § 87(2)(b) asked why. PO Granahan asked for his identification “multiple times.” § 87(2)(b) raised his voice and threw his hands up in the air. PO Granahan stated that he was sure that the person he saw downstairs was the same person that he encountered upstairs. PO Granahan got § 87(2)(b)’s identification from him while they were still on the § 87(2)(b). PO Granahan asked him to come downstairs and all the officers escorted him out. No physical contact was made with § 87(2)(b). He was not frisked or searched at any point. PO Granahan did not use any profanity when speaking to § 87(2)(b). § 87(2)(b) he did not unholster his gun and none of the other officers unholstered their gun. § 87(2)(b) was summonsed for urinating, spitting and possibly for disorderly conduct. § 87(2)(b) was spitting on the sidewalk when they went outside. PO Collora summonsed § 87(2)(b). When asked how § 87(2)(b) was being disorderly during this incident PO Granahan stated that he was cursing, yelling, and

screaming. § 87(2)(b)'s brother came out and was trying to calm him down by talking to him. PO Granahan stated that he was sure he had been to that location before but could not recall for what reason. PO Granahan was asked if PO Hanley ever said to § 87(2)(b) "You've got to stop smoking that glass pipe." PO Granahan stated that he did not. PO Granahan stated that § 87(2)(b) never asked for his name or shield number and that he did not hear him request that information from any of the other officers. PO Granahan was asked what § 87(2)(b) was specifically saying when he was cursing. PO Granahan stated that § 87(2)(b) said, "What the fuck is going on around here? What the fuck! This is bullshit." § 87(2)(b) did not try to get on the phone. PO Granahan stated that he did not call § 87(2)(b) a wise-ass or asshole.

Police Documents

Summonses

§ 87(2)(b) was summonsed for urinating in public, spitting and disorderly conduct. The disorderly conduct summons was for subsection 240.20.5, which states that, "A person is guilty of disorderly conduct when, with intent to cause public inconvenience, annoyance or alarm, or recklessly creating a risk thereof: he obstructs vehicular or pedestrian traffic" (encl. B). § 87(2)(a) 160.50

Civilian Conviction History

§ 87(2)(b) has no conviction history.

Civilian CCRB History

§ 87(2)(b) has not filed any prior complaints at the CCRB.

Officer CCRB History

PO Matthew Granahan has had one substantiated allegation for retaliatory summons, case 200409370. The police department penalized him with instructions. PO Edgar Bourdon has not had any substantiated allegations at the CCRB. PO John Hanley had three substantiated force allegations and one substantiated discourteous language allegation in case 9403497, for which no recommendations were made and information regarding the outcome is unavailable. PO Collora was penalized by the police department for using discourteous language as a result of complaint number 200301705. In that case the board also substantiated the frisk and search and a threat of arrest however, he was found not guilty during his DCT hearing. In case number 200301790 PO Collora's charges, resulting from the board's substantiation of a frisk and search were dismissed.

Conclusions and Recommendations

Disputed Facts

§ 87(2)(g)

[REDACTED]

Undisputed Facts

On January 6, 2006 PO Granahan, PO Bourdon, PO Hanley and PO Collora entered § 87(2)(b) and stopped § 87(2)(b) in the corridor. § 87(2)(b) was upset. He cursed and yelled at the officers. A crowd did not gather but some neighbors watched the incident. The officers brought him outside and PO Collora issued him summonses for urinating in public, spitting, and disorderly conduct.

Credibility

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

PO Granahan, PO Bourdon, PO Hanley and PO Collora § 87(2)(g)

§ 87(2)(b) claimed that § 87(2)(b) was urinating two doors down from his own residence when the doors to his building were not locked. They also claimed that § 87(2)(b) ran up to the § 87(2)(b) when they chased him into the building although he could have escaped into his own apartment on the § 87(2)(b). The officers also denied any mention or observation of a dog and denied that § 87(2)(b)'s mother was present for the incident. § 87(2)(g)

§ 87(2)(b) The officers did not make any note of this incident in their memo books. The only documentation generated from this incident were the summonses.

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g) PO Collora and PO Granahan claimed that no frisk took place while PO Bourdon stated that PO Collora frisked § 87(2)(b) outside and PO Hanley stated that he could not remember. § 87(2)(g)

PO Hanley stated that § 87(2)(b) went into the apartment and came out after the officers knocked on the door. PO Bourdon stated that they did not knock or bang on the door. PO Collora stated that § 87(2)(b) did not go inside the apartment and PO Granahan stated that he put his hand against the door to stop it from closing and that § 87(2)(b) came out of the apartment when he was given verbal instructions to do so. § 87(2)(g)

Allegations not pleaded

§ 87(2)(g)

§ 87(2)(g) The issuance of the summonses is addressed in allegation J.

Allegation A: PO Matthew Granahan stopped and questioned § 87(2)(b)

§ 87(2)(g)

§ 87(2)(g) It is recommended that Allegation A be substantiated.

Allegation B: PO Matthew Granahan spoke obscenely and rudely to § 87(2)(b)

§ 87(2)(g)

§ 87(2)(g) it is therefore recommended that Allegation B be unsubstantiated.

Allegation C: PO Matthew Granahan threatened to damage § 87(2)(b)'s property.

§ 87(2)(g)

§ 87(2)(g) For these reasons it is recommended that Allegation C be unsubstantiated.

Allegation D: An officer spoke obscenely and rudely to § 87(2)(b)

§ 87(2)(g)

§ 87(2)(g) It is recommended that Allegation D be closed as officer unidentified.

Allegation E: PO Matthew Granahan pointed his gun at § 87(2)(b)

§ 87(2)(g) He stated that when he came out of his apartment PO Granahan had his gun drawn and pointed and that PO Granahan holstered his gun in order to put § 87(2)(b) against the wall and perform a frisk. PO Granahan denied pointing his gun. § 87(2)(g)

Therefore, it is recommended that Allegation E be unsubstantiated.

Allegation F: PO Matthew Granahan frisked § 87(2)(b)

Allegation G: PO Edgar Bourdon frisked § 87(2)(b)

§ 87(2)(g) had stated that he had a dog inside and the officers could have suspected he had armed himself. § 87(2)(g)

For all of these reasons it is recommended that Allegations F and G be unsubstantiated.

Allegation H: PO John Hanley frisked § 87(2)(b)

Allegation I: PO John Hanley spoke obscenely and rudely to § 87(2)(b)

PO John Hanley retired on July 7, 2006. For this reason it is recommended that Allegations H and I be closed as miscellaneous, subject retired.

Allegation J: PO Joseph Collora issued summonses to § 87(2)(b)

The summonses that PO Collora issued to § 87(2)(b) were issued in bad faith, for the purpose of justifying the officers' actions. The officers were not credited for their claim that § 87(2)(b) urinated and spat because their claims were not plausible nor were the officers found credible. PO Collora did not adequately justify his reasons for issuing the disorderly conduct summons to § 87(2)(b). All of the officers articulated that § 87(2)(b) was upset that he was being stopped and that he questioned their authority to stop him. § 87(2)(b) admitted that he was using profanity. However, PO Collora did not articulate how § 87(2)(b) may have caused public inconvenience or alarm and certainly did not refer to any instance when he obstructed vehicular or pedestrian traffic, the subsection referred to in the summons. For these reasons it is recommended that Allegation J be substantiated.

Allegation K: PO Matthew Granahan refused to provide his name and shield number to § 87(2)(b)

It was § 87(2)(b)'s claim that he obtained the license plate number of the car the officers were driving after PO Granahan refused to provide his name and shield number. § 87(2)(g)

According to patrol guide procedure 203-09, an officer is required to provide his shield number when a member of the public asks for it (encl. F). For the reasons stated above it is recommended that Allegation K be substantiated.

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: